

TIALZ.COM – Terms of Use

Last Updated: January 2, 2026

Provider: TIALZ.COM Inc., an Ontario corporation ("TIALZ.COM," "Company," "we," "us," or "our"), a wholly-owned subsidiary of Distinova Technologies Inc., an Ontario corporation.

Plain-English Summary (Non-Binding Overview)

*This section provides a brief, informal summary of key points of the Terms. It is provided for convenience only and is **not legally binding**. Please read the full Terms below for the binding agreement.*

- **Who We Are:** TIALZ.COM Inc. (a subsidiary of Distinova Technologies Inc.) operates TIALZ.COM (the "Service"), an AI-powered productivity and task management platform.
 - **Your Agreement:** By creating an account, accessing, or using the Service, you agree to these Terms and our Privacy Policy.
 - **Beta & Commercial Releases:** These Terms cover both our Beta versions and the final "Post-Release" commercial software. Both are provided "As Is" to the maximum extent permitted by law.
 - **Risk & Responsibility:** Uploading sensitive or confidential data is prohibited. If you do so, you accept full responsibility for any consequences.
 - **AI & Data Use:** We may use anonymized, aggregated, or derived data to train machine learning models and improve the Service.
 - **Liability:** We aggressively limit our liability and disclaim warranties. You must indemnify us against claims arising from your content or use of the Service.
 - **Legal Jurisdiction:** These Terms are governed by the laws of **Ontario, Canada**. Disputes will be resolved through binding arbitration in Toronto.
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1. Introduction and Acceptance

These Terms of Use ("Terms") constitute a binding agreement between you ("Customer," "you," or "your") and **TIALZ.COM Inc.** ("Company," "we," "us," or "our") governing your access to and use of **TIALZ.COM** (the "Service").

By accessing or using the Service—including by creating an account, installing a mobile or desktop app, enabling an integration, using an API, or otherwise interacting with the platform—you acknowledge and agree that you have read, understood, and accepted these Terms and our Privacy Policy, which is incorporated herein by reference.

If you do not agree with these Terms, **you must not use the Service**. If you accept these Terms on behalf of a company, organization, or other legal entity, you represent and warrant that you are authorized to bind that entity. All references to "you" or "Customer" in these Terms shall include such entity and its authorized users.

2. Definitions

To ensure consistency across our legal documents, the following terms are defined as follows:

- **"Account"**: means the unique account you create to access and use the Service.
- **"Artificial Intelligence" or "AI"**: means any technology, including but not limited to machine learning, deep learning, large language models (LLMs), neural networks, and generative models, used to perform tasks that would otherwise require human intelligence.
- **"AI Features"**: means any features, tools, or functionalities within the Service that utilize AI to process Customer Data or generate insights, recommendations, and content.
- **"AI Outputs"**: means the results, text, data, summaries, or other content generated by the AI Features in response to prompts, inputs, or User-Generated Content.
- **"Authorized User"**: means any individual authorized by you to access or use the Service under your Account.
- **"Customer Data"**: means all information, data, files, text, documents, messages, and other content submitted, uploaded, transmitted, or otherwise made available through the Service by you or on your behalf.
- **"Derived Data"**: means data generated from the processing, analysis, or aggregation of Customer Data, metadata, usage statistics, or other interactions with the Service, which does not directly identify any individual or entity.
- **"Service"**: means the TIALZ.COM platform, including the web application, mobile apps, desktop apps, APIs, browser extensions, official integrations, related documentation, updates, and all associated components.
- **"User-Generated Content" or "UGC"**: means any content, tasks, projects, notes, files, messages, or data created, uploaded, or submitted by you or your Authorized Users to the Service.

3. Eligibility and Access

3.1 Legal Capacity: The Service is intended for users who are at least the age of majority in their jurisdiction and capable of entering into a legally binding contract. By using the Service, you represent and warrant that you meet these requirements.

3.2 Jurisdictional Restrictions: The Service is not intended for use in jurisdictions that require formal data processing agreements, local data residency, government registration, or prior governmental approval for cross-border data transfer.

3.3 Beta and Pre-Release Features: Certain components of the Service may be offered as alpha, beta, trial, or pre-release features ("Pre-Release Features"). Such features are provided

"as is," may contain bugs or incomplete functionality, and may change or be discontinued at any time.

4. Account Registration and Security

4.1 Account Creation: You must register for an Account to use most features. You agree to provide accurate, complete, and current information during registration and to maintain and promptly update such information.

4.2 Organizational Accounts: If you register on behalf of a company or organization, you are responsible for managing Authorized Users. The organization is liable for all acts and omissions of its Authorized Users under these Terms.

4.3 Account Security: You are responsible for maintaining the confidentiality of your login credentials. You must immediately notify us at security@tialz.com of any unauthorized access or suspected breach.

5. User-Generated Content (UGC) and Acceptable Use

5.1 Ownership of UGC: You retain all ownership rights, including copyrights, in the UGC you upload, create, or submit through the Service. Nothing in these Terms transfers ownership of your UGC to the Company.

5.2 Prohibited Data and Upload Risks: The Service—including all Beta and Post-Release versions—is a general-purpose productivity tool and is **not** intended for the storage or processing of sensitive data.

- **Prohibition:** You are strictly prohibited from uploading, storing, or processing "Sensitive Personal Information" as defined under Ontario/Canadian law (PIPEDA) or US law (CCPA/CPRA), including but not limited to: financial account numbers, credit card data, medical/health records, biometric data, trade secrets, or government-issued identification.
- **Assumption of Risk:** Because the Service is provided on an "As Is" and "As Available" basis, we assume no responsibility or liability for the exposure, loss, or unauthorized disclosure of any such sensitive data. If you choose to upload such data in violation of these Terms, you do so at your own sole risk and expense.

5.3 Prohibited Conduct and Harmful Content: You agree not to use the Service to create or transmit content that is illegal, tortious, harmful, threatening, harassing, hateful, or malicious (containing viruses or malware).

5.4 No Obligation to Monitor: You acknowledge that TIALZ.COM Inc. does not actively monitor or pre-screen UGC. We act as a passive conduit and do not guarantee the completeness or reliability of any UGC. You are solely responsible for your content.

5.5 Right to Remove: We reserve the right, but have no obligation, to remove or disable access to any UGC at our sole discretion if we believe it violates these Terms or applicable law.

5.6 Account Termination for Misconduct: Violation of this Section may result in immediate suspension or termination without notice or refund.

5.7 License Grant to Company: By uploading UGC, you grant TIALZ.COM Inc. and its parent, Distinova Technologies Inc., a worldwide, non-exclusive, royalty-free, perpetual, and sublicensable license to host, store, reproduce, and process such content solely for the purposes of providing, securing, and improving the Service (including the training of AI models as further described in Section 6).

6. Artificial Intelligence Features and Derivative Works

6.1 AI Outputs and Use: The Service uses AI technologies to generate AI Outputs. You acknowledge that:

- AI Outputs are **automatically generated** and may be inaccurate, incomplete, or biased.
- AI Outputs are provided **for informational purposes only** and do not constitute professional advice.
- You are solely responsible for reviewing and verifying any AI Outputs before relying on them.

6.2 License to Use and Commercialize Derived Works: You acknowledge and agree that we may create **Derived Works** from Customer Data, metadata, usage logs, and AI Outputs. You agree that all Derived Works are and will remain the **exclusive property of TIALZ.COM Inc.** and may be used for **any commercial purpose** (including training future AI models or developing new products) without compensation or obligation to you.

7. Third-Party Services

The Service may integrate with third-party services. We do not control these services, and your use of them is solely at your own risk.

8. Intellectual Property

The Service, including all software, APIs, designs, documentation, and underlying intellectual property, is and will remain the exclusive property of TIALZ.COM Inc., its parent Distinova Technologies Inc., and its licensors.

9. Security and Data Handling

We implement commercially reasonable safeguards to protect the Service. However, no system is completely secure, and we cannot guarantee the prevention of all security incidents or breaches.

10. Disclaimers and Warranties

10.1 "As Is" Service: YOU EXPRESSLY ACKNOWLEDGE AND AGREE THAT THE SERVICE IS PROVIDED "AS IS" AND "AS AVAILABLE," WITHOUT WARRANTIES OF ANY KIND. TO THE MAXIMUM EXTENT PERMITTED BY LAW, WE DISCLAIM ALL WARRANTIES, CONDITIONS, AND REPRESENTATIONS, INCLUDING MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, NON-INFRINGEMENT, AND ACCURACY OF AI OUTPUTS.

10.2 No Professional Advice: AI Outputs are not intended as professional advice.

10.3 Consumer Law Notice: If you are a consumer in Ontario or a similar jurisdiction, non-excludable rights may apply. For businesses, you agree that the *Sale of Goods Act* (Ontario) and the *International Sale of Goods Act* do not apply.

11. Limitation of Liability

11.1 Exclusion of Indirect Damages: TO THE MAXIMUM EXTENT PERMITTED BY LAW, NEITHER PARTY WILL BE LIABLE FOR ANY INDIRECT, CONSEQUENTIAL, OR PUNITIVE DAMAGES.

11.2 Aggregate Liability Cap: EXCEPT FOR EXCLUDED CLAIMS, EACH PARTY'S TOTAL LIABILITY WILL NOT EXCEED THE GREATER OF THE AMOUNT PAID BY YOU IN THE TWELVE (12) MONTHS PRIOR TO THE EVENT, OR USD \$100.

11.3 Excluded Claims: The limitations above do not apply to IP infringement, payment obligations, indemnification, fraud, gross negligence, or death/personal injury where liability cannot be excluded by law.

12. Indemnification

You will indemnify and hold harmless TIALZ.COM Inc. and Distinova Technologies Inc. from third-party claims arising from your UGC, your violation of these Terms, or your use of the Service.

13. Termination

We may suspend or terminate your access immediately if you violate these Terms. Upon termination, your right to use the Service ceases, but UGC license grants and our rights to Derived Data survive.

14. Dispute Resolution and Arbitration

14.1 Informal Resolution: Parties agree to attempt to resolve disputes informally first.

14.2 Binding Arbitration (ICDR Canada): Disputes shall be resolved by binding arbitration administered by **ICDR Canada** in accordance with its Canadian Arbitration Rules. The seat of arbitration shall be **Toronto, Ontario, Canada**. The language shall be English.

14.3 Individual Basis: You waive any right to participate in a class action.

14.4 Opt-Out Rights: You may opt out of arbitration within 30 days of accepting these Terms by emailing arbitration-optout@tialz.com.

15. Governing Law and Venue

These Terms are governed by the laws of the **Province of Ontario and the federal laws of Canada** applicable therein. You submit to the exclusive jurisdiction of the courts located in Toronto, Ontario.

16. Export Controls

You represent that you are not located in a sanctioned country and that you will comply with all applicable export control laws.

17. General Provisions

You may not assign these Terms without consent. If any provision is unenforceable, the remaining provisions remain in force. These Terms constitute the entire agreement.

18. Amendments and Modifications

We reserve the right to modify these Terms at any time. Material changes will be notified via the Service or email. Continued use constitutes acceptance.

19. Contact Information

- **Support:** support@tialz.com
- **Legal:** legal@tialz.com
- **Privacy:** privacy@tialz.com